

Trade Solutions Pilot  
COMMERCIAL SOLUTIONS OPENING PILOT PROGRAM (CSOP) SOLICITATION  
CSOP-BP-GS-25-0001



# U.S. Customs and Border Protection

**Trade Solutions Pilot (TSP)  
COMMERCIAL SOLUTIONS OPENING PILOT PROGRAM (CSOP)  
GENERAL SOLICITATION  
CSOP-BP-GS-25-0001**

**June 13, 2025**

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**TRADE SOLUTIONS PILOT (TSP)**  
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## **1.0 GENERAL INFORMATION**

### **1.1 BACKGROUND**

This is a procurement action using the commercial solutions opening (CSO) procedure in accordance with Section 880 of the National Defense Authorization Act (NDAA 880) for Fiscal Year 2017, Title VIII, §880 (Public Law 114-328), ), which was extended in December 2022 through 2027, and is subject to the limitations outlined in the Department of Homeland Security (DHS) Commercial Solutions Opening Pilot Program (CSOP) Guide. This procurement is part of the Department of Homeland Security (DHS)/Customs and Border Protection (CBP) CSOP and is being used to competitively procure innovative commercial items, technologies, and services.

CBP has developed this pilot program to be implemented outside the normal Federal Acquisition Regulation (FAR) requirements to engage traditional and non-traditional Government Contractors, including start-up companies and academia. This pilot program is intended to promote competition with a streamlined approach to address specific needs for innovative commercial items. This pilot program offers a range of advantages to open the field of competition so that the Government and taxpayers benefit from a large pool of solutions at a better cost and performance, including:

- General solicitation requiring only minimal corporate and technical information;
- Fast track vendor selection timelines;
- Preference for the vendor retaining core intellectual property.

The National Customs Automation Program (NCAP) was established by Subtitle B of Title VI—Customs Modernization, in the North American Free Trade Agreement Implementation Act (Customs Modernization Act) (Pub. L. 103-182, 107 Stat. 2057, 2170, December 8, 1993) ([19 U.S.C. 1411](#)). Through the NCAP, the thrust of customs modernization was focused on trade compliance and the development of the Automated Commercial Environment (ACE), the successor to the Automated Commercial System (ACS). ACE is an automated and electronic system for commercial trade processing, intended to streamline business processes, facilitate growth in trade, ensure cargo security, and foster participation in global commerce, while facilitating compliance with U.S. laws and regulations and reducing costs for U.S. Customs and Border Protection (CBP) and all of its communities of interest.

CBP currently faces a rapidly evolving global trade landscape that requires new technology approaches and operational methods. The volume of small packages in the de minimis

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environment combined with recent changes to de minimis rules presents opportunities for the private sector and for CBP to improve efficiency, lower costs, and maximize revenue collection. Current challenges include high barriers to classify products for tariff calculations, managing evolving import risks, innovating revenue collection methods, and limited visibility into supply chains. The ability to meet CBP's mission objectives depends on successfully modernizing CBP's business functions and the information technology that supports those functions. CBP's modernization efforts are accomplished through phased releases of ACE component functionality, which update the system and add new functionality. The Customs Modernization Act authorizes the Commissioner of CBP to conduct limited test programs or procedures designed to evaluate planned components of the NCAP.

As CBP faces a growing need for more information, there exists private sector trade compliance platforms and technologies designed to support importers, exporters, and freight forwarders with commercial documentation, denied party screening, tariff calculation, and partner agency filing. These systems are typically optimized for transactional efficiency, cost savings, and regulatory compliance from a private sector business perspective. Access to the data contained in private sector trade compliance platforms can greatly assist in CBP's targeting efforts, allocation of operational resources, and overall mission efficiency. They can also help bolster benefits given to Trusted Trader designations in programs such as the Customs Trade Partnership Against Terrorism. CBP is interested in technology solutions that improve industry compliance and/or provide new enforcement insights to CBP that allow for improved risk segmentation. Gaining access to private sector trade compliance data presents opportunities for both the private sector and for CBP to improve efficiency, lower costs, and maximize revenue collection. However, adding law enforcement sensitive algorithms and targeting models to private sector systems could result in a compromise of law enforcement sensitive information to commercial users, especially if CBP uses an out of the box solution hosted by the vendor (for a Software as a Service, or SaaS model).

## **2.0 PROJECT DESCRIPTION**

CBP will assess commercial solutions that integrate with CBP's Automated Commercial Environment (ACE). The development and implementation of these private sector solutions, which will be conducted via a test environment within ACE, will enable CBP to explore how cutting-edge solutions already in use by the private sector may be leveraged by the U.S. government to streamline operations, promote cargo security and compliance, and secure tariff revenue.

Under Department of Homeland Security (DHS) Commercial Solution Opening Pilot Program (CSOP), CBP will explore cutting-edge technologies that solve one or more capability pillars:

- **Pillar 1:** Artificial Intelligence (AI)-driven solutions that address one or more of the following: automated tariff classification, value and country of origin validations; earlier tariff collection and payment to the U.S. Government, especially in the international mail environment; and supply chain tracing solutions that improve

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visibility and risk segmentation of imports and supply chain actors before shipments arrive in the U.S.

- **Pillar 2:** Technology solutions that enable electronic direct filing of entry/entry summary information with CBP to reduce existing competitive barriers faced by small/medium sized businesses who may lack financial resources to employ reliable Licensed Customs Broker services.
- **Pillar 3:** Existing technology solutions that could be used to develop an international customs platform accessible to World Customs Organization (WCO) members.

If awarded a contract, over the course of this intended CSOP piloting program, CBP will assess:

- The interoperability of the proposed commercial solutions with CBP's IT infrastructure, allowing seamless ingestion of the information CBP needs to execute its enforcement mission.
- Feasibility of the proposed commercial solutions to test one or more of the below services:
  - U.S. Government collection of international mail data prior to shipment arrival
  - At-scale pre-vetting of customers, products, and/or the physical security of goods
  - Accurate AI-enabled tariff classification of products
  - Enhanced supply chain tracing and insight into parties, production methods, and the movement of goods
  - Improved CBP risk management to better manage the volume of small packages
  - Self-filing of entry/entry summary information for small / medium sized companies via business-to-government solutions
  - Secure third-party receipt of data that seamlessly allow publicly available export data from foreign customs agencies to be ingested by CBP.

The solutions delivered under this SOW must drive enhancements and efficiencies around tariff classification, import risk management, tariff revenue collection, and/or supply chain tracing. The desired end state for this SOW is direct transmission into ACE of trade data, entity data, and AI driven insights that support CBP's enforcement mandates, collection of revenue, identification of high-risk shipments, and expedited processing of low-risk imports—all without exposure to CBP stored PII and law enforcement sensitive algorithms and targeting models. The solutions should increase the thoroughness and/or reduce the time needed overall to conduct import or entity reviews, segment risk, and reduce CBP personnel manpower and resource commitments to sustain high volume operations such as low-value package reviews.

A core tenet of this exploratory effort is to increase CBP's agility to more efficiently evaluate, implement, and leverage cutting-edge innovations developed by the private sector. As a result, CBP is especially interested in exploring solutions that may use alternative methods other than CBP's existing Electronic Data Interchange (EDI) standards of electronic data transmission to CBP's Automated Commercial Environment (ACE). Exploring modern solutions that enable secure data transmissions to CBP systems will allow the agency to be more nimble and resourceful in adopting cutting-edge technology.

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The purpose of this general solicitation is to seek industry information and solutions about Trade Solutions capabilities. CBP requests the submission of solution briefs for one or more of the following three (3) Pillars and capabilities, if awarded: (See the SOW for further information.)

a) **Cutting-edge technologies** that solve one or more capability pillars:

1. **Pillar 1:** Solutions CBP may eventually certify to interface with CBP systems and provide key services, including:
  - AI-enabled solutions to drive automated tariff classification, value and country of origin validations, etc.
  - Earlier tariff collection and payment to the U.S. Government especially in the international mail environment.
  - Supply chain tracing solutions to improve visibility and risk segmentation of imports and supply chain actors before shipments arrive in the U.S.
2. **Pillar 2:** Solutions that enable electronic direct filing of entry/entry summary information with CBP to reduce existing competitive barriers faced by small/medium sized businesses who may lack financial resources to employ reliable Licensed Customs Broker services.
3. **Pillar 3:** Existing technology solutions that could be used to develop an international customs platform accessible to World Customs Organization (WCO) members.

b) **Services**, if applicable, which may include:

1. *Expanded Feature Development* (Product development features to support CBP operations). Government may require the contractors support in expanding CBP's capability by helping it develop additional add on features or enhancements as the need arises.
2. *Training* to support deployment, use, and upgrades.

### 3.0 SOLUTION BRIEF SUBMISSION REQUIREMENTS

#### 3.1 SUBMISSION REQUIREMENTS

There will be two submission windows under this general solicitation (described below). Offerors are highly encouraged to submit under the first window; however, CBP will accept solution briefs on a "rolling" basis in Window 2 and may make subsequent awards provided that funding is available. Upon receipt, solution briefs submitted under Window 2 will receive a follow-up message from the Contracting Officer (CO) acknowledging receipt of the submitter's submission and the CO will provide further expectations on the timeline for review and evaluation. Solution briefs are limited to a page count of 11 letter size pages (8.5" x 11"), per Pillar (as described above in section 2) submitted, with a font type of Times New Roman and a

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minimum font size of 12pt. The subject of the e-mail must be titled “CSOP-BP-GS-25-0001 Solution Brief – Vendor/Submitter’s Name”.

Oral presentations, technical challenge/demonstrations or other written information may be requested by the government at the sole discretion of the Contracting Officer to supplement the written solution brief at any time before potential award. Any oral presentations or demonstrations requested will be coordinated with the Submitter and may be conducted by videoconference, in-person, or by video submission, at the government’s discretion.

### **3.1.1 Submission Window 1:**

All questions or requests for clarifications regarding this solicitation must be electronically submitted in writing no later than **3:00 pm Eastern Standard Time, June 20, 2025** to [peter.a.giambone@cbp.dhs.gov](mailto:peter.a.giambone@cbp.dhs.gov) & [joshua.bedregal@cbp.dhs.gov](mailto:joshua.bedregal@cbp.dhs.gov). The subject of the e-mail must be titled “Request for Clarifications re: CSOP-BP-GS-25-0001.” Requests, questions, or comments which are time stamped after the question due date and time may not be accepted, nor receive a response from the Government, in the sole discretion of the CO.

Written solution briefs as described in section 3.2 of this solicitation must be submitted electronically by **3:00 pm Eastern Standard Time, July 7, 2025** to the following e-mail boxes: [peter.a.giambone@cbp.dhs.gov](mailto:peter.a.giambone@cbp.dhs.gov) & [joshua.bedregal@cbp.dhs.gov](mailto:joshua.bedregal@cbp.dhs.gov).

### **3.1.2 Submission Window 2:**

Written solution briefs as described in section 3.2 of this solicitation submitted after Window 1 (07/07/2025) must be submitted electronically by **3:00 pm Eastern Standard Time, June 30, 2026**, to the following e-mail boxes: [peter.a.giambone@cbp.dhs.gov](mailto:peter.a.giambone@cbp.dhs.gov) & [joshua.bedregal@cbp.dhs.gov](mailto:joshua.bedregal@cbp.dhs.gov). Solution brief submissions received in Window 2 will receive a follow-up message from the CO acknowledging receipt of the submitter’s submission and the CO will provide further expectations on the timeline for review and evaluation. Solution briefs submitted under Window 2 will be reviewed and evaluated in the order they are received and will be after Window 1 submissions.

## **3.2 WRITTEN SOLUTION BRIEF REQUIREMENTS**

Solution briefs are limited to a total page count of eleven (11) letter size pages (8.5” x 11”), per Pillar (as described above in section 2) submitted. If an offeror submits a solution to more than one Pillar, the offeror shall submit Section 1 and Section 2 (detailed below) for each submitted Pillar Solution.

### **3.2.1 CONTENT OF SOLUTION BRIEF**

#### **Section 1 Compliance Questions (1 Page per Pillar Solution Submitted)**



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Please indicate your understanding and acknowledgement/confirmation that your proposed solution complies with the following requirements:

1. Confirm and clearly describe that the technology solution proposed is a commercial item/solution.
2. Confirm and clearly describe that the technology solution proposed is innovative or how the commercial solution is offered in an innovative manner. Within the meaning of the statute, innovative is defined as: “Any new technology, process, or method, including research and development, or any new application of an existing technology, process, or method.”
3. Confirm understanding that the technology solution cannot operate behind the CBP IT firewall and cannot require any CBP data input to achieve the capability
4. Confirm your willingness and preparedness to conduct 60-90 minute in-person demonstrations of your capabilities shortly after submitting written responses, if requested, and indicate what your demonstration would entail.
5. Confirm your understanding that at the conclusion of this procurement process, CBP may select several viable candidates to proceed with as part of an ongoing pilot via a test environment within CBP’s Automated Commercial Environment (ACE).
  - The intended awarded pilot may ultimately inform minimum security criteria and certifications for vendors to transmit data to CBP systems beyond the pilot phase.
  - Throughout the intended awarded pilot, awardees will be expected to report relevant metrics to CBP on data transmissions enabled by the solutions, including details on the quantity and types of data transmitted.

**Section 2- Solution Briefing Questions (Up to 10 pages per Pillar Solution Submitted)**

The written solution brief shall answer the following questions. Strict adherence to the page limits for each section as pages beyond the stated limit will not be considered for evaluation. Submit your responses in MSWord and Adobe PDF format.

1. Please indicate which of the three capability pillar(s) outlined in the SOW your solution is intended to address and clearly describe how the proposed solution fulfills one or more of the below needs. Be specific about any methodologies, required inputs/outputs, strengths, and risks. Quantify, if possible, how your solution could scale beyond a testing pilot to fulfill the operational needs described in the SOW.
  - U.S. Government collection of international mail data prior to shipment arrival
  - At-scale pre-vetting of customers, products, and/or the physical security of goods
  - Accurate AI-enabled tariff classification of products
  - Enhanced supply chain tracing and insight into parties, production methods, and the movement of goods
  - Improved CBP risk management to better manage the volume of small packages

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- Self-filing of entry/entry summary information for small / medium sized companies via business-to-government solutions
  - Secure third-party receipt of data that seamlessly allows publicly available export data from foreign customs agencies to be ingested by CBP.
2. Describe your technology and its potential relevance to the project description outlined. Specifically, CBP would like submitters to address the following information with their solution brief:
    - Technology to be applied, to include a detailed description of the hardware/software/system requirements providing the technical capability.
    - The proposed technology capabilities
    - Describe how your system addresses interoperability with regard to the following definition:
      - Interoperability is the ability of different information technology systems and software applications to communicate, exchange data, and use the information that has been exchanged
      - Proposed solutions should not be based on existing Electronic Data Interchange (EDI) standards.
  3. Describe experience providing these solutions to existing clients.
  4. Describe how your solution would transmit data to CBP's ACE System and highlight any experience transmitting data to DHS systems.
  5. Will you be able to comply 100% with the Technical Compliance requirements in the SOW? If not, briefly justify any exception and the rationale to proceed.
  6. Describe any anticipated costs that CBP would incur related to the proposed solution.
  7. If your solution includes the use of AI/ML/algorithms:
    - a. Describe any AI-relevant experience working with the Federal Government and in CBP's specific mission space. If you have non-AI experience only, please describe the experience most relevant to this SOW.
    - b. What is your technique to creating unbiased, trustworthy AI systems or risk assessment models? What is your approach to building an explainable and transparent system?
    - c. How would you assess the resiliency of your capabilities when faced with adversarial attempts to misdirect or mislead your solution?
    - d. How are the AI algorithms evaluated?
    - e. What is the accuracy of any proposed AI capabilities?
  8. Based on the scope laid out in the SOW, do you own the rights to all the existing solutions you believe could be used to support the SOW?
  9. What are the potential inherent risks in your proposed solution?
  10. Describe delivery lead time for your proposed system?
  11. How long does it take your company to update software solutions to implement updated rules and regulations (E.g., executive orders)?

### 3.2.2 PROPRIETARY MARKINGS

Submitters must mark any pages of written solution brief that contain business plans, technical information, pricing or other business sensitive information as proprietary information, which the Government agrees to safeguard.

To ensure that sensitive data is appropriately marked by the Submitter, include the following sentences on the cover page: “This solution brief includes data that shall not be disclosed outside the Government, except to non-Government personnel for evaluation purposes, and shall not be duplicated, used or disclosed – in whole or in part – for any purpose other than to evaluate this submission. If, however, an agreement is awarded to this Company as a result of – or in connection with – the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent agreed upon by both parties in the resulting agreement. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets].”

Each restricted data sheet must be marked as follows: “Use or disclosure of all data contained on this sheet is subject to the restriction on the title page of this solution brief.”

## 4.0 EVALUATION OF SOLUTION BRIEFS

### 4.1 GENERAL

Pursuant to the authority of NDAA 880, CBP has been vested with procedural discretion to make multiple contract awards resulting from the evaluation and determination of viable technology solutions. Proposals shall be evaluated on their individual merits rather than on a comparative basis. **Besides the criterion described in section 4.2 below, all proposed solutions must clearly demonstrate how the commercial item is offered in an innovative manner.** Within the meaning of the statute, innovative is defined as:

*“Any new technology, process, or method, including research and development, or any new application of an existing technology, process, or method.”*

Both the written solution brief and oral presentation, if applicable, will be evaluated against the evaluation criteria. Each solution brief submitted will be evaluated on its own merits against the evaluation criteria and will not be evaluated against other solution briefs in order to make an award determination. It is within the Government’s discretion to accept more than one solution brief for an award resulting from this solicitation. The Government reserves the right to request oral presentations, technical demonstrations, or additional written information, if applicable, from one or more Submitters at any time during the solicitation period.

### 4.2 EVALUATION TIMELINE AND PHASES

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The following table shows the Government's estimated evaluation schedule and different phases of evaluation.

| Phase           | Submission                                        | Due Date                                                         |
|-----------------|---------------------------------------------------|------------------------------------------------------------------|
| 1               | Solution Brief (11 Pages per Pillar Solution)     | 07/07/2025 - Window 1<br>06/30/2026 - Window 2                   |
| 1<br>(Optional) | Technical Demonstration<br>&/or Oral Presentation | Upon notice                                                      |
| 2               | Full Proposal (25 Pages)                          | 2 weeks from Notice or when requested by the Contracting Officer |

Phase 1: The evaluation of this phase is described herein section 4.2 in the succeeding paragraphs above.

Phase 1 (Optional): Technical demonstrations or oral presentations may be conducted, but by invitation only. Invitations will only be extended to those Submitters who have been determined to be a potentially viable solution from the Phase 1 evaluation described here in section 4.2. The purpose of technical demonstrations shall be for the Submitter to validate their claims as proposed in the solution brief.

Phase 2: Proposed solutions determined to be viable in Phase 1 will be invited to submit a full proposal to further contract discussions and the potential formation of a resulting contract. Section 5.0 below describes the content required for a full proposal submission.

#### 4.2.1 PHASE 1 EVALUATION

The following evaluation criteria shall be used to evaluate the written solution brief and oral presentation. The evaluation criteria are listed below in order of importance from top to bottom.

**Note:** CBP will only make an award resulting from this general solicitation to a solution that provides an **innovative commercial item**, as defined in Section 4.1.

The evaluation of Criterion I, II, III, and optional Criterion IV, if necessary, will each be evaluated holistically with a rating scale of "high confidence," "some confidence," and "low confidence," representing the Government's confidence that the Submitter understands the requirement and will be successful in performing the work.

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| <b>Confidence Level Rating</b> | <b>Definition</b>                                                                                                                                                                                             |
|--------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>High Confidence</b>         | The Government has High Confidence that the Submitter understands the requirement, proposes a sound approach, and will be successful in performing a CSOP contract with little or no Government intervention. |
| <b>Some Confidence</b>         | The Government has some confidence that the Submitter understand the requirement, proposes a sound approach, and will be successful in performing a CSOP Contract with little or no Government intervention.  |
| <b>Low Confidence</b>          | The Government has low confidence that the Submitter understands the requirement, proposes a sound approach, or will be successful in performing a CSOP Contract even with Government intervention.           |

- **Criterion I:** Capabilities Approach. Responsiveness and relevance to the project description. This includes the breadth of the responsiveness to desired solution (Trade Solution) the commercial item represents, including the assessed potential of the technology solution for addressing CBP's capability gaps provided in sections 1 and 2 of this solicitation, and solution methodology. The assessment will result in a Confidence Level Rating.
- **Criterion II:** Transition Approach. An assessment will be made regarding how the proposed technology/solution will be leveraged in CBP operations (e.g., commercialized or used by CBP). The assessment will determine the likelihood that the Submitter will be able to successfully support the deployment of a Trade Solution into the CBP operational environment to support the CBP user community. The assessment will result in a Confidence Level Rating.
- **Criterion III:** Submitter's Related Experience. The Submitter's prior experience (both Government and non-government) in similar efforts will be assessed to determine if the Submitter clearly demonstrates an ability to deliver solutions that meet the proposed technical performance. The assessment for this criterion will include evaluating any corporate viability requirements specified in the solicitation. The assessment will result in a Confidence Level Rating.
- **Optional Criterion IV (If requested):** Technical Challenge and/or Orals Presentation. An assessment will be made regarding the demonstration of proposed solution. This assessment will include the Submitter's understanding of the Government's Objectives and Outcomes and the likelihood of the Submitter successfully performing the prospective contract resulting in a Confidence Level Rating.

#### 4.3 PEER REVIEW TEAM EVALUATION

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A peer review team will be used to evaluate the solution briefs or optional technical challenge/oral presentations, if applicable, submitted in response to this solicitation. The peer review team will consist of U.S. Government and Contractor employees.

#### **4.4 SOLUTION BRIEF EVALUATION AND NOTIFICATION TO SUBMITTERS**

Solution briefs will be evaluated in accordance with the evaluation criteria defined in section 4.2. After evaluating the Submitter's written solution briefs, CBP will formally notify the Submitter whether an oral presentation or other supplemental information is requested to supplement the written solution brief, their solution brief was not selected for award, or the submitter is being advanced to participate in Phase II of this solicitation. Submitters not selected for award may request, within 5 calendar days of notification of non-selection, feedback regarding the technical review findings of their submitted solution brief.

#### **4.5 TECHNICAL DEMONSTRATIONS/ORAL PRESENTATIONS**

The Government reserves the right to request oral presentations, technical demonstrations, or additional written information, if applicable, from one or more Submitters. The Government is likely to conduct technical challenges/demonstrations and Oral Presentations as a follow-up evaluation to the solution briefs but is not required to in order to advance submitters on to the next solicitation phase or to make an award.

If Submitters are invited to conduct a technical demonstration, the Submitter shall provide and be responsible for all costs related to the labor, supervision, tools, materials, equipment, transportation, and management necessary for a technical demonstration to be conducted under this General Solicitation. This is just a preliminary notice to industry for what the contractor shall be responsible for in the event a vendor is requested to conduct a technical demonstration. This is not an exhaustive list of costs the submitter may be responsible for related to conducting technical demonstrations.

#### **5.0 FULL PROPOSAL SUBMISSION (PHASE II)**

##### **5.1 GENERAL**

When invited to proceed to Phase II by the Government after an evaluation of the Submitter's solution brief (and/or optional oral presentation/technical demonstration) in accordance with Section 4, the Government will request Submitters to develop and submit a full proposal. Companies may discuss ideas and details of the proposal with the Government prior to submission. Upon notice to proceed to Phase II, each proposal submitted shall consist of three sections responding to the Government's SOW:

- Section 1: Technical Information
- Section 2: Proposal Solution
- Section 3: Price Information

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The cost of preparing proposals in response to this Request is not considered a direct charge to any resulting CSOP contract award or any other contract. Proposal preparation costs are not recoverable.

Proposals shall be limited to a page count of 25 letter size pages (8.5" x 11"), with a font type of times new roman and a minimum font size of 12pt. Submitters will be given further submittal instructions at the time of invitation.

## **5.2 TECHNICAL APPROACH**

Describe the background and objectives of the proposed work. Include the nature and extent of the anticipated results. Discuss any risks and proposed mitigation strategy to address the risks. Include ancillary and operational issues such as certifications, algorithms, and any engineering/software development methodologies to be used. Identify the type of support, if any, the Company requests of the Government in general such as facilities, equipment, data, and information or materials.

## **5.3 PROPOSAL SOLUTION**

The Submitter must submit a proposal solution as part of their final proposal that identifies the work to be performed and the deliverables. Provide a detailed project schedule that outlines the various phases of work to be accomplished within the proposed period of performance.

## **5.4 PRICE INFORMATION**

The Submitter must submit the total price to complete the project and shall provide any other data or supporting information that the parties agree is necessary for the determination of a fair and reasonable price. A milestone schedule shall be included which clearly indicates the completion of the priced tasks and/or priced deliverables that are required to meet each of the milestones. For Firm-Fixed-Price agreements, the milestone schedule will serve as a payment schedule for any subsequent award.

## **5.5 PHASE II EVALUATION**

The PHASE II proposal submitted in response to this solicitation shall be evaluated on the following:

- Submitter's demonstrated understanding of the work to be performed and ability to meet the Government's requirements as stated in the solicitation, including the Statement of Work; and
- Price reasonableness, as determined by the Government to ensure that award is made at a fair and reasonable price. The Government may request supporting information to support a fair and reasonable determination of the submitter's price.

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A contract may be awarded to a submitter whose proposal conforms to the requirements of the solicitation (to include all stated terms, conditions, representations, certifications, and all other information required by in other sections) and is judged to represent an acceptable technical/cost solution for the Government's requirements. The submitter must be considered responsible within the meaning of FAR 9.104.

In addition to the specific evaluation criteria contained above in this section of the solicitation, the Contracting Officer will consider the following additional factors in the peer review selection process:

- a) The submitter must respond to all the requirements of the solicitation and must include in its proposal all information specifically required in all sections of the solicitation.
- b) Award of a contract cannot be made to any submitter unless an agreement can be secured for all stated terms, conditions, representations, certifications, and all other information required by the solicitation.
- c) Award of a contract can only be made to a submitter:
  - 1) Whose proposal is technically acceptable or represents the best value;
  - 2) Whose proposed price is determined reasonable; and
  - 3) Who is considered to be responsible within the meaning of FAR 9.104.

## **5.6 NOTIFICATION TO SUBMITTER DURING PHASE II**

CBP will notify the Submitter whether their submission has been accepted for award, further negotiation is requested, or if the submission is not accepted for award. As the government may elect to issue multiple resultant awards, certain submitters may receive award notifications prior to others. While initial award(s) may be placed, other submitters may receive future awards as funding and government needs warrant. However, the Government is not required to make an award, and favorably rated submitters are not entitled to receive an award.

## **5.7 NEGOTIATION AND AWARD**

Based on the Phase 1 & 2 evaluations, the government may enter directly into negotiations with each submitter to make a resultant award.



## **6.0 PROTESTS TO THE AGENCY**

Protests under CSOP awards shall be adjudicated as prescribed under CBP Agency-Level protest procedures only.

Protest submissions shall be sent via e-mail to Contracting Officer, Peter Giambone at [peter.a.giambone@cbp.dhs.gov](mailto:peter.a.giambone@cbp.dhs.gov).

Submitters may seek assistance from the agency Advocate for Competition. The Department Advocate for Competition and Procuring Activity Advocates for Competition are shown on the Doing Business with DHS page, and is accessible at:

<https://www.dhs.gov/competition-advocates-and-task-order-and-delivery-order-ombudsman>.

## **7.0 INVOICES AND PAYMENT**

### **7.1 ASSIGNMENT**

The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727).

### **7.2 PAYMENT AND INVOICE INSTRUCTIONS (APR 2014)**

(a) The contractor shall submit an original invoice/voucher, via postal mail or electronic mail (email), simultaneously to the following:

- (1) U.S. Customs and Border Protection  
Commercial Accounts Section  
6650 Telecom Drive, Suite 100  
Indianapolis, Indiana 46278

OR email: [cbpinvoices@dhs.gov](mailto:cbpinvoices@dhs.gov) (**Preferred**)

- (2) Contracting Officer or Contract Administrator (CO or CA) [fill in at time of award]  
DHS/U.S. Customs and Border Protection  
Attention: [Contracting Officer Name]  
Email: [Contracting Officer Email address]  
Phone: [Contracting Officer Phone Number]

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- (3) Contracting Officer's Representative (COR) or Point of Contact [fill in at time of award]  
DHS/U.S. Customs and Border Protection  
Attention: [COR or POC Name]  
Email: [COR or POC Email address]  
Phone: [COR or POC Phone Number]

(b) The invoice shall include a detailed report of all items and services invoiced for. The CO, in conjunction with the COR and NFC, will determine whether the invoice is proper or improper within seven (7) days of receipt. Improper invoices will be returned to the contractor within seven (7) days of receipt.

### **7.3 PAYMENTS**

#### **7.3.1 GENERAL**

The Government shall pay the Contractor 30 days after the service period, the prices stipulated in this contract for supplies delivered and accepted or services rendered and accepted, less any deductions provided in this contract.

Unless otherwise specified in the contract, the Government may make payment on partial deliveries accepted by the Government if either:

- The amount due on the deliveries warrants it.
- The Contractor requests it and the amount due on the deliveries is at least \$1,000 or 50 percent of the total contract price.

#### **7.3.2 ADVANCE PAYMENTS**

Advance payments are prohibited unless a statute specifically authorizes the advance payment.

#### **7.3.3 OVERPAYMENTS**

If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall:

- Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the:
  - Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);
  - Affected contract number and delivery order number, if applicable;
  - Affected line item or subline item, if applicable; and Contractor point of contact.
- Provide a copy of the remittance and supporting documentation to the Contracting Officer.

#### **7.3.4 INTEREST ON DEBT DUE TO GOVERNMENT BY THE CONTRACTOR**

- All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.
- The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.
- Final decisions. The Contracting Officer will issue a final decision if:
  - The Contracting Officer and Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;
  - The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or
  - The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer.
- If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.
- Amounts shall be due at the earliest of the following dates:
  - The date fixed under the contract.
  - The date of the first written demand for payment, including any demand for payment resulting from a default termination.
- The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on:
  - The date on which the designated office receives payment from the Contractor;
  - The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or
  - The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

### **8.0 TERMS AND CONDITIONS**

The terms and conditions defined throughout this section are applicable only to a resulting contract award as described in the preceding sections of this general solicitation.

#### **8.1 SYSTEM FOR AWARD MANAGEMENT (SAM) REGISTRATION**

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Successful Submitters not already registered in SAM will be required to register prior to award of any contract. Information regarding SAM registration is available at <https://sam.gov>. See the following Quick Start Guide for specific guidance on SAM registration: [https://www.sam.gov/sam/transcript/Quick\\_Guide\\_for\\_Contract-Registration.pdf](https://www.sam.gov/sam/transcript/Quick_Guide_for_Contract-Registration.pdf). To remain registered in the SAM database after the initial registration, the Contractor is required to review and update on an annual basis from the date of initial registration or subsequently update its information to ensure it is current, accurate and complete.

The Contractor is responsible during performance and through final payment of any contract for the accuracy and completeness of the data within the SAM database, and for any liability resulting from the Government's reliance on inaccurate or incomplete data. The Contractor shall not change the name or address for EFT payments or manual payments, as appropriate, in the SAM record to reflect an assignee for the purpose of assignment of claims. Assignees shall be separately registered in the SAM database.

## **8.2 INTELLECTUAL PROPERTY**

Intellectual property rights shall be negotiated prior to a resulting contract award with those submitters deemed to have submitted a successful proposal from Phase 2. The mutually agreed upon intellectual property terms and conditions shall be inserted into this section at the time of award.

## **8.3 RISK OF LOSS**

Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

- Delivery of the supplies to a carrier, if transportation is Free on Board (FOB) origin, or
- Delivery of the supplies to the Government at the destination specified in the contract if transportation is FOB destination.

## **8.4 TAXES**

The contract price includes all applicable Federal, State, and local taxes and duties.

## **8.5 TITLE**

Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

## **8.6 WARRANTY**

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In addition to any other warranties provided by the contractor, The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

## **8.7 LIMITATION ON LIABILITY**

Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

## **8.8 OTHER COMPLIANCES**

The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

## **8.9 ORDER OF PRECEDENCE**

Any inconsistencies in this solicitation and contract shall be resolved by giving precedence in the following order:

1. The schedule of supplies/services.
2. The Assignments, Disputes, Payments, Invoice, Other Compliances, Unauthorized Obligations, and Commercial Supplier Agreements – Unenforceable Clauses sections of this contract.
3. Addenda to this solicitation or contract, including any commercial supplier agreements as amended by the Commercial Supplier Agreements – Unenforceable Clauses section of this contract, unless in conflict with Section 8.11 of this Contract.
4. Solicitation provisions if this is a solicitation.
5. Other documents, exhibits, and attachments.
6. The specification.

## **8.10 UNAUTHORIZED OBLIGATIONS**

Except as stated in Section 9.12.2, when any supply or service acquired under this contract is subject to any commercial supplier agreement that includes any language, provision, or clause requiring the Government to pay any future fees, penalties, interest, legal costs or to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

- Any such language, provision, or clause is unenforceable against the Government.
- Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the commercial supplier agreement. If the commercial supplier agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does

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not bind the Government or any Government authorized end user to such clause.

- Any such language, provision, or clause is deemed to be stricken from the commercial supplier agreement.

Section 9.12.1 does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

## **8.11 COMMERCIAL SUPPLIER AGREEMENTS – UNENFORCEABLE CLAUSES**

When any supply or service acquired under this contract is subject to a commercial supplier agreement, the following language shall be deemed incorporated into the commercial supplier agreement. As used herein, “this agreement” means the commercial supplier agreement:

- Notwithstanding any other provision of this agreement, when the end user is an agency or instrumentality of the U.S. Government, the following shall apply:
  - Applicability. This agreement is a part of a contract between the commercial supplier and the U.S. Government for the acquisition of the supply or service that necessitates a license or other similar legal instrument.
  - End User. This agreement shall bind the ordering activity as end user but shall not operate to bind a Government employee or person acting on behalf of the Government in his or her personal capacity.
  - Laws and Disputes. This agreement is governed by Federal law.
    - Any language purporting to subject the U.S. Government to laws of a U.S. state, U.S. territory, district, or municipality, or a foreign nation, except where Federal law expressly provides for the application of such laws, is hereby deleted.
    - Any language requiring dispute resolution in a specific forum or venue that is different from that prescribed by applicable Federal law is hereby deleted.
    - Any language prescribing a different time period for bringing an action than that prescribed by applicable Federal law in relation to a dispute is hereby deleted.
  - Continued Performance. The supplier or licensor shall not unilaterally revoke, terminate or suspend any rights granted to the Government except as allowed by this contract. If the supplier or licensor believes the ordering activity to be in breach of the agreement, it shall pursue its rights under applicable Federal statute while continuing performance as set forth below in this section.
  - Arbitration; Equitable or Injunctive Relief. In the event of a claim or dispute arising under or relating to this agreement, a binding arbitration shall not be used unless specifically authorized by agency guidance, and equitable or injunctive relief, including the award of attorney fees, costs or interest, may be awarded against the U.S. Government only when explicitly provided by statute.
  - Updating Terms.
    - After award, the contractor may unilaterally revise commercial supplier

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agreement terms if they are not material. A material change is defined as:

- Terms that change Government rights or obligations;
  - Terms that increase Government prices;
  - Terms that decrease overall level of service; or
  - Terms to limit any other Government right addressed elsewhere in this contract.
- For revisions that will materially change the terms of the contract, the revised commercial supplier agreement must be incorporated into the contract using a bilateral modification.
- Any agreement terms or conditions unilaterally revised subsequent to award that are inconsistent with any material term or provision of this contract shall not be enforceable against the Government, and the Government shall not be deemed to have consented to them.
- No Automatic Renewals. If any license or service tied to periodic payment is provided under this agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express consent by an authorized Government representative approval.
- Indemnification. Any clause of this agreement requiring the commercial supplier or licensor to defend or indemnify the end user is hereby amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.
- Audits. Any clause of this agreement permitting the commercial supplier or licensor to audit the end user's compliance with this agreement is hereby amended as follows:
  - Discrepancies found in an audit may result in a charge by the commercial supplier or licensor to the ordering activity. Any resulting invoice must comply with the proper invoicing requirements specified in the underlying Government contract or order.
  - This charge, if disputed by the ordering activity, will be resolved through the Disputes section of this contract.
  - Any audit requested by the Contractor will be performed at the Contractor's expense, without reimbursement by the Government.
- Taxes or Surcharges. Any taxes or surcharges which the commercial supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the underlying Government contract or order and, in any event, must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed to otherwise in the Government contract.
- Non-Assignment. This agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval.
- Confidential Information. If this agreement includes a confidentiality clause, such clause is hereby amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of

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Information Act. Notwithstanding anything in this agreement to the contrary, the Government may retain any confidential information as required by law, regulation or its internal document retention procedures for legal, regulatory or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of this agreement.

- If any language, provision, or clause of this agreement conflicts or is inconsistent with Section 7.13, the language and provisions of Section 7.13 shall prevail to the extent of such inconsistency.

## **8.12 INCORPORATION BY REFERENCE**

Any Contractor representations and certifications completed electronically via the System for Award Management (SAM) are incorporated by reference into the contract.

### **8.12.1 FAR CLAUSES AND PROVISIONS INCORPORATED BY REFERENCE**

- FAR Clause 52.203-16, PREVENTING PERSONAL CONFLICTS OF INTEREST (JUN 2020) (applies if conditions are met at FAR provision 3.1106(a))
- FAR Clause 52.203-17, CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS (NOV 2023)
- FAR Clause 52.204-23, PROHIBITION ON CONTRACTING FOR HARDWARE, SOFTWARE, AND SERVICES DEVELOPED OR PROVIDED BY KASPERSKY LAB COVERED ENTITIES, DHS FAR Deviation 20-05, Rev 3 (JUL 2024)
- FAR 52.204-24, REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OF EQUIPMENT
- FAR Clause 52.204-25, PROHIBITION ON CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT, DHS FAR Class Deviation 20-05, Rev 3 (DEC 2020)
- FAR 52.204-26, COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES – REPRESENTATION
- FAR Clause 52.204-28, FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – FEDERAL SUPPLY SCHEDULES, GOVERNMENTWIDE ACQUISITION CONTRACTS, AND MULTI-AGENCY CONTRACTS (DEC 2023)
- FAR 52.204-29, FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – REPRESENTATION AND DISCLOSURES (DEC 2023)
- FAR Clause 52.204-30, FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS – PROHIBITION (DEC 2023)
- FAR Clause 52.222-50, COMBATING TRAFFICKING IN PERSONS (NOV 2021)



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- FAR Clause 52.222-54, EMPLOYMENT ELIGIBILITY VERIFICATION (JAN 2025) (applies if conditions are met at FAR provision 22.1803, unless any of the exceptions apply from FAR 22.1803 (a), (b), or (c))

Solicitation provisions listed herein will be removed from the resultant contract.

### **8.13 CHANGES**

Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

### **8.14 SUSPENSION AND TERMINATION PROCEDURES**

**8.15.1** The Government reserves the right to terminate the CSOP for cause or for convenience of the Government.

**8.15.1.1** The CO may suspend performance of this contract at any time by providing written notice to the contractor. Upon receipt of such a notice, the contractor shall cease performance until the CO either (1) withdraws the suspension of work in writing or (2) notifies the contractor in writing of his or her intention to terminate this contract whether for convenience of the Government or for cause. If the suspension results in the incurrence of costs that the contractor was unable to avoid, the contractor may request an equitable adjustment in writing to the CO.

**8.15.1.2** If the CO fails to provide further instructions within sixty (60) days from the notice to suspend work, this contract will be considered terminated for the convenience of the Government, and the contractor will cooperate with the Government with closing out the contract.

**8.15.1.3** The CO may terminate this contract in whole or in part for the convenience of the Government at any time by written notice. The contractor shall then cease further performance and take all reasonable measures to minimize any further incurrence of costs.

**8.15.1.4** If the contractor fails to comply with the terms and conditions of this contract, the CO will provide written notice of breach or deficiency to the contractor and will provide the contractor an opportunity to explain or correct the breach or deficiency within thirty (30) days from receipt of notice. As a result of any response by the contractor, the CO may (1) proceed with the termination for cause; (2) convert the termination to one for the convenience of the Government; or (3) direct the contractor to continue performance.

**8.15.2** This contract may be terminated by the CO at the request of the contractor under the following conditions:

**8.15.2.1** The contractor shall notify the CO at least 30 days prior to the termination requested effective date.

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**8.15.2.2** The notification shall state the reasons for the termination, the requested effective date, and, if a partial termination, the portion to be terminated. If the CO determines, in the case of a partial termination, that the reduced or modified portion of the award will not accomplish the purpose for which the award was made, the CO may terminate the award in its entirety.

**8.15.3** The Government and the contractor will negotiate in good faith an equitable reimbursement for work performed for which the contractor has not received payment.

## **8.16 DISPUTES**

- a) This contract is subject to 41 U.S.C. Chapter 71, Contract Disputes.
- b) Except as provided in 41 U.S.C. Chapter 71, all disputes arising under or relating to this contract shall be resolved under this section.
- c) “Claim,” as used in this clause, means a written demand or written assertion by one of the contracting parties seeking, as a matter of right, the payment of money in a sum certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to this contract. However, a written demand or written assertion by the Contractor seeking the payment of money exceeding \$100,000 is not a claim under 41 U.S.C. Chapter 71 until certified. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under 41 U.S.C. Chapter 71. The submission may be converted to a claim under 41 U.S.C. Chapter 71, by complying with the submission and certification requirements of this clause, if it is disputed either as to liability or amount or is not acted upon in a reasonable time.
- d) (1) A claim by the Contractor shall be made in writing and, unless otherwise stated in this contract, submitted within 6 years after accrual of the claim to the Contracting Officer for a written decision. A claim by the Government against the Contractor shall be subject to a written decision by the Contracting Officer.
  - (2) (i) The Contractor shall provide the certification specified in paragraph (d)(2)(iii) of this clause when submitting any claim exceeding \$100,000.
  - (ii) The certification requirement does not apply to issues in controversy that have not been submitted as all or part of a claim.
  - (iii) The certification shall state as follows: “I certify that the claim is made in good faith; that the supporting data are accurate and complete to the best of my knowledge and belief; that the amount requested accurately reflects the contract adjustment for which the Contractor believes the Government is liable; and that I am authorized to certify the claim on behalf of the Contractor.”
- (3) The certification may be executed by any person authorized to bind the Contractor with respect to the claim.
- e) For Contractor claims of \$100,000 or less, the Contracting Officer must, if requested in writing by the Contractor, render a decision within 60 days of the request. For Contractor –certified claims over \$100,000, the Contracting Officer must, within 60 days, decide the claim or notify the Contractor of the date by which the decision will be made.

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- f) The Contracting Officer's decision shall be final unless the Contractor appeals or files a suit as provided in 41 U.S.C. Chapter 71.
- g) If the claim by the Contractor is submitted to the Contracting Officer or a claim by the Government is presented to the Contractor, the parties, by mutual consent, may agree to use alternative dispute resolution (ADR). If the Contractor refuses an offer of ADR, the Contractor shall inform the Contracting Officer, in writing, of the Contractor's specific reasons for rejecting the offer.
- h) The Government shall pay interest on the amount found due and unpaid from (1) the date that the Contracting Officer receives the claim (certified, if required); or (2) the date that payment otherwise would be due, if that date is later, until the date of payment. With regard to claims having defective certifications, as defined in FAR 33.201, interest shall be paid from the date that the Contracting Officer initially receives the claim. Simple interest on claims shall be paid at the rate, fixed by the Secretary of the Treasury as provided in the Act, which is applicable to the period during which the Contracting Officer receives the claim and then at the rate applicable for each 6-month period as fixed by the Treasury Secretary during the pendency of the claim.
- i) The Contractor shall proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the Contracting Officer.

## **8.17 DEFINITIONS**

When a solicitation provision or contract clause uses a word or term that is defined in the Federal Acquisition Regulation (FAR), the word or term has the same meaning as the definition in FAR 2.101 in effect at the time the solicitation was issued, unless:

- The solicitation, or amended solicitation, provides a different definition; or
- The contracting parties agree to a different definition.

## **8.18 ADDITIONAL TERMS AND CONDITIONS**

### **8.18.1 COMPLIANCE WITH APPLICABLE EXECUTIVE ORDERS**

- i. "In compliance with Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity, dated January 21, 2025, the contractor agrees that its compliance in all respects with applicable Federal anti-discrimination laws is material to the government's payment decisions for purposes of section 3729(b)(4) of title 31, United States Code; and, by virtue of submitting a quote/offer, the contractor certifies that it does not operate any programs promoting DEI that violate any applicable Federal anti-discrimination laws."
- ii. "No requirement in this contract should conflict or contravene Executive Order 14154 "Unleashing American Energy" dated January 20, 2025. To the extent any requirement

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may conflict or contravene that Executive Order, the requirement is deemed inapplicable to this contract. The Contractor should consult with the CO on any such requirement they determine is inconsistent with the Executive Order, and work on proposed modifications to comply with the EO and statutory requirements.”

- iii. “System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.222-25, Affirmative Action Compliance, and paragraph (d) and (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Additional examples include 52.212-5, Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services, and 52.213-4, Terms and Conditions—Simplified Acquisitions (Other Than Commercial Products and Commercial Services); 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation. Components shall not consider or use these representations.

Contracting officers will not consider the following representations when making award decisions or enforce requirements:

- Paragraph (d) and (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services;
- Paragraphs (b)(33), (b)(34), (e)(1)(ix), and (e)(1)(x) of 52.212-5, Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services. Additionally, per this deviation, in paragraph (b)(46), E.O. 14057 does not apply;
- Paragraphs (e)(1)(ii)(I) and (e)(1)(ii)(J) of Alternate II of 52.212-5, Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services; and
- Paragraphs (a)(1)(vii) and (a)(1)(viii) of 52.213-4, Terms and Conditions—Simplified Acquisitions (Other Than Commercial Products and Commercial Services). Additionally, per this deviation, in paragraph (b)(1)(xvii), E.O. 14057 does not apply.

Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.”

## **8.19 FOREIGN NATIONALS**

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- A. For purposes of this clause, foreign nationals are all persons not citizens of, not nationals of, nor immigrant aliens to, the United States of America. Nothing in this clause is intended to waive any requirements imposed by any other U.S. Government agency with respect to employment of foreign nationals or export control.
- B. The contractor acknowledges that the technical data generated under this contract may be subject to export control, including disclosure to foreign nationals, whether such data is provided orally or in written form.
- C. The contractor agrees to obtain written approval from the CO before assigning any foreign national to perform work under this contract or before granting foreign nationals access to data related to this contract, whether such data is provided by the Government or generated under this contract.

## **8.20 TERM OF THE CONTRACT**

The term of this contract is twelve (12) months from date of contract award, plus any options established through proposal discussions.

Nothing in this contract is intended to conflict with current law or regulation or the directives of the DHS. If a term of this contract is inconsistent with such authority, then that term shall be invalid, but the remaining terms and conditions of this contract shall remain in full force and effect.

## **8.21 CONTRACT TYPE**

It is intended that any resulting contract from this solicitation shall be Firm Fixed Price.

## **8.22 OPTIONS**

CBP may establish options for future purchasing requirements. Options shall be executed in accordance with terms established in the resulting CSOP contract.

## **8.23 TEST EQUIPMENT - CBP APPROVAL OF PROPOSED EQUIPMENT**

Any new technology not currently approved for use on the CBP network must be tested and approved prior to purchase. Award will be contingent upon review and approval of the CBP Chief Technology Officer (CTO). Products proposed in support of this requirement must either be currently authorized products on the CTO Technical Reference Model (TRM) or must undergo testing for approval on the TRM. Once an apparent successful offer is identified, and it is determined that any of the items are not on the TRM, the Contracting Officer will contact the vendor and arrange to have a unit shipped to CBP for testing. If the equipment is determined to be acceptable, the vendor will be informed that their equipment complies with CBP standards, and the order may then be executed. If the equipment is found to be unacceptable (not meeting CBP standards), CBP will return the test unit to the vendor, and the CO will continue to the next lowest priced offer. The Vendor shall provide a test unit to CBP preferably within seven (7) days

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of notification or a timeframe agreed upon between the vendor and CBP. The Vendor shall be responsible for the cost associated with shipping the test unit to CBP for testing and the return of the test unit if necessary.

#### **8.24 CONTRACTING OFFICER'S AUTHORITY**

The Contracting Officer (CO) is the only person authorized to approve changes in any of the requirements of this contract. In the event the Contractor effects any changes at the direction of any person other than the Contracting Officer, the changes will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in costs incurred as a result thereof. The Contracting Officer shall be the only individual authorized to accept nonconforming work, waive any requirement of the contract, or to modify any term or condition of the contract. The Contracting Officer is the only individual who can legally obligate Government funds. No cost chargeable to the proposed contract can be incurred before receipt of a fully executed contract or specific authorization from the Contracting Officer.

#### **8.25 OPTION TO EXTEND THE TERM OF THE CONTRACT**

The Government may unilaterally extend the term of this contract for the Option Year by written notice to the Contractor within 30 days of base period expiration; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract base period expires.

The preliminary notice does not commit the Government to an extension. If the Government exercises this option, the extended contract shall be considered to include this option clause.

The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months from date of award.

#### **8.26 OPTION FOR INCREASE IN QUANTITY**

During the Base Year, the Government may increase the quantity of items in the CLIN Schedule at the unit price specified therein.

In any Option Year, the Government may increase the quantity of items at a unit price equal to then prevailing commercial price, or the lowest price paid by the Government under contracts, whichever is lower.

The Contracting Officer may exercise the option for an increase in quantity by written notice to the Contractor at any time period within the contract period of performance. Delivery terms of the added items shall continue at the same rate as the like items called for under the contract, unless the parties otherwise agree.

## **8.27 SHIPPING – F.O.B. DESTINATION**

(a) The term “f.o.b. destination,” as used in this clause, means --

(1) Free of expense to the Government, on board the carrier’s conveyance, at a specified delivery point where the consignee’s facility (plant, warehouse, store, lot, or other location to which shipment can be made) is located; and

(2) Supplies shall be delivered to the destination consignee’s wharf (if destination is a port city and supplies are for export), warehouse unloading platform, or receiving dock, at the expense of the Contractor. The Government shall not be liable for any delivery, storage, demurrage, accessorial, or other charges involved before the actual delivery (or “constructive placement” as defined in carrier tariffs) of the supplies to the destination, unless such charges are caused by an act or order of the Government acting in its contractual capacity. If rail carrier is used, supplies shall be delivered to the specified unloading platform of the consignee. If motor carrier (including “piggyback”) is used, supplies shall be delivered to truck tailgate at the unloading platform of the consignee, except when the supplies delivered meet the requirements of Item 568 of the National Motor Freight Classification for “heavy or bulky freight.” When supplies meeting the requirements of the referenced Item 568 are delivered, unloading (including movement to the tailgate) shall be performed by the consignee, with assistance from the truck driver, if requested. If the contractor uses rail carrier or freight forwarded for less than carload shipments, the contractor shall ensure that the carrier will furnish tailgate delivery, when required, if transfer to truck is required to complete delivery to consignee.

(b) The Contractor shall --

(1) (i) Pack and mark the shipment to comply with contract specifications; or

(ii) In the absence of specifications, prepare the shipment in conformance with carrier requirements;

(2) Prepare and distribute commercial bills of lading;

(3) Deliver the shipment in good order and condition to the point of delivery specified in the contract;

(4) Be responsible for any loss of and/or damage to the goods occurring before receipt of the shipment by the consignee at the delivery point specified in the contract;

(5) Furnish a delivery schedule and designate the mode of delivering carrier; and

(6) Pay and bear all charges to the specified point of delivery.

## **8.28 MODIFICATIONS TO THE CONTRACT**

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Any changes to the contract and its attachments shall be issued in writing by the Contracting Officer utilizing a Government Standard Form 30, "Amendment of Solicitation/Modification of Contract" (SF 30). For purposes of this section, "Administrative change" means a unilateral contract change, made in writing by the Government, that does not affect the substantive rights of the parties (e.g., a change in the paying office or the appropriation data).

## **8.29 MODIFICATIONS**

Modifications may be of two types:

a) Bilateral. A bilateral modification is a contract modification that is signed by the contractor and the contracting officer. Bilateral modifications are used to --

- (1) Make negotiated equitable adjustments resulting from the issuance of a change order;
- (2) Reflect other agreements of the parties modifying the terms of contracts.

(b) Unilateral. A unilateral modification is a contract modification that is signed only by the contracting officer. Unilateral modifications are used, for example, to --

- (1) Make administrative changes;
- (2) Make changes authorized by other clauses
- (3) Issue termination notices.

## **8.30 VERSION UPGRADING/ENGINEERING CHANGES**

The Government reserves the right to modify this contract—

a. when a release of the software or a change to the existing hardware containing new features, functionality and/or performance improvements that would enable the existing software and/or hardware configuration to perform to the level of the next version of the software and/or hardware configuration and is designed to replace the older software and/or hardware version of the same product and/or extend the useful life of that product;

b. when product engineering changes need to be made as determined by mutual agreement of the parties to either comply with Agency requirements or enhance mission requirements.

In both circumstances, both parties shall negotiate these changes and any resulting contract price adjustments shall be made to the contract.

## **8.31 PRESS/NEWS RELEASE**

The vendor shall not make any press/news release pertaining to this procurement without prior Government approval and only in coordination with the Government.



**8.32 PROHIBITION ON UNMANNED AIRCRAFT SYSTEMS MANUFACTURED OR ASSEMBLED BY AMERICAN SECURITY DRONE ACT-COVERED FOREIGN ENTITIES (NOV 2024)**

(a) *Definitions.* As used in this clause—

*American Security Drone Act-covered foreign entity* means an entity included on a list developed and maintained by the Federal Acquisition Security Council (FASC) and published in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

*FASC-prohibited unmanned aircraft system* means an unmanned aircraft system manufactured or assembled by an American Security Drone Act-covered foreign entity.

*Unmanned aircraft* means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft ( [49 U.S.C. 44801\(11\)](#)).

*Unmanned aircraft system* means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system ( [49 U.S.C. 44801\(12\)](#)).

(b) *Prohibition.* The Contractor is prohibited from—

(1) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.);

(2) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.); and

(3) On or after December 22, 2025, using Federal funds for the procurement or operation of a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31, [41 U.S.C. 3901](#) note prec.).

(c) *Procedures.* The Contractor shall search SAM at <https://www.sam.gov> for the FASC-maintained list of American Security Drone Act-covered foreign entities prior to proposing, or using in performance of the contract, any unmanned aircraft system. Additionally, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

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(d)*Exemptions, exceptions, and waivers.* The prohibitions in this clause do not apply where the agency has determined an exemption, exception, or waiver applies and the contract indicates that such a determination has been made. [See sections 1823 through 1825 and 1832 of Public Law 118-31 ( [41 U.S.C. 3901](#) note prec.) for statutory requirements pertaining to exemptions, exceptions, and waivers.].

(e)*Subcontracts.* The Contractor shall insert the substance of this clause, including this paragraph (e), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services.

(End of Section 8)